Alkesh- Sharma vs Serious Fraud Investigation Office on 30 May, 2023

Author: Amit Sharma

Bench: Amit Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
\+ BAIL APPLN. 1631/2023
ALKESH- SHARMA
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SERIOUS FRAUD INVESTIGATION OFFICE
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CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA
OR

% 30.05.2023 CRL.M.A. 14061/2023 (Exemption)

1. Exemption allowed, subject to just exceptions.

2. The application is disposed of accordingly.

CRL.M.(BAIL) 727/2023

3. The present application under Section 482 of the Cr.P.C. seeks following prayers:

> "a. Grant of Interim Bail on Medical Grounds for six weeks to This is a digitally signed order.
>
> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC

> Server on 08/10/2023 at 05:07:25 the Applicant/Accused, Alkesh Sharma, in Reg.no.cc/3 74/2022 cnr no.dlsw01-005039-2022 registered by SFIO;
>
> b. To call for the medical record of the applicant/accused from the Jail Superintendent of Tihar Jail. Pass such further Order or Orders as this Hon'ble Court may deem fit and proper in the facts and circumstances of the case in the interest of justice."

4. The latest medical report dated 26.05.2023 of the present applicant has been received from the Office of the Superintendent, Central Jail No. 04, Tihar, New Delhi. The said report forwards the report dated 26.05.2023 from the Office of the Senior Medical Officer, Dispensary, Central Jail No. 04, Tihar, New Delhi-110064 wherein it has been stated as under:

> "At present inmate patient is a known case of Type-II Diabetes mellitus/Hypertension, he is suffering from bleeding per rectum, constipation, blood in micturition, pain in bilateral knee, anxiety and decreased sleep, Ghabhrahat, giddiness, varicose vein over medial side of left thigh and just below left knee, frequent micturition, weakness, stiffness during bending, body itching, ?oral candidiasis, pain over right knee, acidity, heaviness of chest, pain abdomen, dribbling of urine, decrease frequency during night, history of black stool, weight loss, increase frequency of urine, urgency and his recent urine culture was suggestive of "Pathogenic Growth of Enterococcus Bacteria" and his recent EGG was suggestive of "mild left axis deviation", for which he is under regular follow-up from duty doctor/ jail visiting specialists/DDU Hospital and patient has reported multiple times in recent past in jail dispensary with complaint of increase frequency of urine, urgency, on and off fever, anxiety, Ghabhrahat and weakness and persisting complaints pertaining to above mentioned illness with anemia with continuous decreasing trend of hemoglobin, for which he is kept admitted in Ml room for round the clock monitoring and care in recent past."

5. Learned Central Government Standing Counsel appearing on behalf of the respondent opposes the present application for granting bail and submits that the present conditions are normal for the people of this age and This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 08/10/2023 at 05:07:25 can be cured by medicine. As per the report itself, it indicates that the said complaints of the applicant have been addressed to by the Jail Dispensary.

6. In view of the report received from the Medical Officer In-Charge, Central Jail No. 04, Tihar, New Delhi-110064, this Court deems appropriate to grant interim bail to the present applicant.

7. In view of the aforesaid facts and circumstances, the present application is partly allowed. The applicant is granted interim bail for a period of two weeks from the date of his release for getting

necessary medical treatments/advice. The present application is directed to be released on bail on his furnishing a personal bond in the sum of Rs. 1,00,000/- with one surety of like amount to the satisfaction of the learned trial Court/Link Court, further subject to following conditions:

> i. The applicant shall not leave the country without prior permission of the trial Court.
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> ii. The applicant shall drop a pin on the Google map to ensure that his location is available to the Investigating Officer. iii. The applicant shall intimate the trial Court by way of an affidavit and to the Investigating Officer regarding any change in residential address. iv. The applicant shall provide his mobile number to the Investigating Officer and intimate about any change.
>
> v. It is directed that the applicant shall surrender on the completion of the aforesaid interim period of 14 days from the date of his release before the concerned Jail Superintendent.

8. The application is allowed and disposed of accordingly.

9. Order be uploaded on the website of this court forthwith.

10. Needless to state, nothing mentioned hereinabove is an opinion on the This is a digitally signed order.

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11. Copy of this order be sent to the concerned Jail Superintendent for necessary information and compliance.

12. List on the date already fixed, i.e., on 05.07.2023.

AMIT SHARMA, J MAY 30, 2023/ab This is a digitally signed order.

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